

06.08.2024

Sanction for Violation of GDPR

The National Authority for the Supervision of Personal Data Processing completed in July 2024 an investigation into the operator BEST ELAN ONLINE SRL and found a violation of the provisions of Article 58 paragraph (1) of Regulation (EU) 2016/679. As such, the operator was sanctioned with a fine amounting to 4,977.1 lei (equivalent to the sum of 1,000 EURO).

The investigation was initiated following a complaint submitted by a data subject who reported receiving unsolicited commercial messages from the operator. Although the individual requested the deletion of their personal data, including by accessing a link provided to data subjects by the operator, the complainant did not receive any response to their request. The operator continued to send the data subject new unsolicited commercial messages.

During the investigation, the operator did not provide the National Authority for the Supervision of Personal Data Processing with the requested information based on its investigative powers, thus violating the provisions of Article 58 paragraph (1) of Regulation (EU) 2016/679.

In addition to the fine, it was ordered that the operator communicate to the National Authority for the Supervision of Personal Data Processing all the requested information and documents in the investigation, pursuant to Article 58 paragraph (1) letters a) and e) of the same regulation.

Legal and Communication Directorate
N.A.S.P.D.C.P.